

20SMCV01214 20SMCV01214

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Case Number: 20SMCV01214 Hearing Date: August 13, 2026 Dept: P

Tentative Ruling

Paul

J. Cohen v. Michael Kaplan, Case No. 20SMCV01214

Defendants'

Motion for Sanctions

Hearing

Date: August 13, 2026

Background

Plaintiffs

Paul J. Cohen and Elaine Cohen and Defendants Michael Kaplan and Lisa Johnson are neighbors. Plaintiffs sued Defendants for trespass and to quiet title to a piece of land (the "Landing") on the property line. Plaintiffs' property is located at 34842 Brown Latigo Street, Malibu, CA 90265 ("Brown Latigo"). (Plaintiffs' Separate Statement of Undisputed Material Facts (PSSUMF), No. 4.) Defendants' property is located at 301 Loma Matisse Road, Malibu CA 90265 ("Loma Matisse"). (Id. at No. 2.)

Trial

in phase 1 of this matter was held between March 23 and March 26, 2026. The Court issued a tentative statement of decision on July 1, 2026. The Court issued a final statement of decision on August 7, 2026.

On

April 27, 2026, the Kaplans filed this Motion for Sanctions. On May 11, 2026, the Cohens filed opposition. On May 26 the Kaplans filed their reply brief.

Governing Law- Motion for Sanctions

CCP section

128.7(b) provides that by signing and filing a pleading, an attorney "is certifying that to the best of the person's knowledge, information, and belief, formed after an inquiry reasonable under the circumstances, all of the following conditions are met: (1) [i]t is not being presented primarily for an improper purpose, such as to harass or to cause unnecessary delay or needless increase in the cost of litigation[;] (2) [t]he claims, defenses, and other legal contentions therein are warranted by existing law or by a nonfrivolous argument for the extension, modification, or reversal of existing law or the establishment of new law[;] (3) [t]he allegations and other factual contentions have evidentiary support or, if specifically so identified, are likely to have evidentiary support after a reasonable opportunity for further investigation or discovery[;] (4) [t]he denials of factual contentions are warranted on the evidence or, if specifically so identified, are reasonably based on a lack of information or belief." (Code Civ. Proc., § 128.7(b).) CCP section 128.7 authorizes the court to impose appropriate sanctions upon attorneys or parties that have violated subsection (b). (Id., § 128.7(c).)

CCP

section 128.7 provides a 21-day safe harbor provision whereby the offending party can avoid sanctions by withdrawing the improper pleading. (See *Galleria Plus, Inc. v. Hanmi Bank* (2009) 179 Cal.App.4th 535, 538.) In pertinent part section 128.7, subdivision (c)(1) reads as follows: "A motion for sanctions under this section shall be made separately from other motions or requests and shall describe the specific conduct alleged to violate subdivision (b). Notice of motion shall be served as provided in Section 1010, but shall not be filed with or presented to the court unless, within 21 days after service of the motion, or any other period as the court may prescribe, the challenged paper, claim, defense, contention, allegation, or denial is not withdrawn or appropriately corrected. . . ." Section 1010 provides that a notice of a motion "must state when . . . the motion will be made."

Discussion

The

Kaplans argue that Paul Cohen's November 2025 declaration submitted in support of his opposition to the Kaplan's motion for summary adjudication contradicted a statement his prior counsel made to the Kaplans in a demand letter prior counsel sent to the Kaplans in 2020. The Kaplans contend that the letter contained a lie that constitutes perjury and fraud on the court.

First,

this motion is procedurally defective. Strict compliance with the safe harbor requirements of Code Civ. Proc. § 128.7 is required, and the notice of motion must state the date and time at which the motion will be heard. (*J.N . v. Goldberg* (2026) 120 Cal.App.5th 544, 549.) The motion must be denied on that ground alone: "Regardless of the merits of defendant's motion or the opportunity for plaintiffs to argue their case in court, the failure to comply with the notice and safe harbor components of section 128.7 requires reversal of the order granting sanctions." (*Id.* at 552.)

Second, the

Kaplans raised this issue at trial, and the Court has already addressed it both in its tentative judgment and in the final judgment:

"The

Kaplans claim that Mr. Cohen later verified this misstatement in a November 6, 2025, declaration he submitted in support of his opposition to the Kaplan's motion for summary adjudication. The Court is not persuaded that the November 6 declaration referred to an in person meeting between the parties rather than the Cohens' demand letter." (Final Statement of Decision, p. 16, fn. 3.)

The

November 6, 2025, declaration is not clearly a false statement, nor is there evidence that Mr. Cohen ever asserted that he met with the Kaplans in person before filing the complaint under oath.

Sanctions

under Code Civ. Proc. § 128.7 are an extraordinary remedy only warranted where extreme conduct requires radical action. One of the more memorable cases of Code Civ. Proc. § 128.7 sanctions involved a Plaintiff hiring a private investigator to steal and destroy evidence from the Defendant. (*Stephen Slesinger, Inc. v. Walt Disney Co.* (2007) 155 Cal.App.4th 736 ["In 1992 or 1993, to assist in prosecuting its lawsuit, SSI hired an investigator to surreptitiously obtain

Disney documents. Other than a purported admonition to obey the law, SSI provided no direction or supervision for the investigator's activities. Working at least until 1995, the investigator took thousands of pages belonging to Disney, including documents marked privileged and confidential. He obtained the documents by breaking into an uncertain number of Disney office buildings and secure trash receptacles, and by trespassing onto the secure facility of the company with which Disney had contracted to destroy its confidential documents."].) Even assuming the Court found the Kaplans' contentions to be supported by evidence, this is not the type of conduct that would warrant § 128.7 sanctions. There is no evidence of any intentional error or professional negligence.

Finally, not only is Mr. Cohen's vague declaration not the sort of misconduct that warrants serious sanctions, the alleged misstatements pale in comparison to the Kaplans' own conduct in this case. Multiple iterations of the Kaplans' complaint along with verified discovery responses contained material falsities, including allegations that the Kaplans used the landing for parties and parking when in fact, the landing is inaccessible by car and they never held parties there. These claims were central to their case for an implied easement based on historical use. Here, by contrast, the challenged statements about a prelitigation meeting are irrelevant to the merits of this case. The Kaplans cannot demand that the Court sanction the Cohens on these grounds and not expect to be sanctioned themselves.

For the aforementioned reasons, the Court awards the Cohens attorneys' fees for opposing this motion. (See Code Civ. Proc. § 128.7(c)(1) ["If warranted, the court may award to the party prevailing on the motion the reasonable expenses and attorney's fees incurred in presenting or opposing the motion. Absent exceptional circumstances, a law firm shall be held jointly responsible for violations committed by its partners, associates, and employees."].)

Attorneys'
Fees

The Cohens request fees for Mr. Valle and Mr. Ksachikyan at \$900 per hour and \$450 per hour, respectively. (Valle Decl., ¶ 11.) Mr. Valle and Ms. Ksachikyan are senior attorneys, and their rates are well within the reasonable rates for attorneys of their experience in the Los Angeles area.

The Cohens

attorneys spent 11.9 and 16 hours working on this motion, and state that they expect to spend 4 and 2 hours preparing for and attending the hearing on this matter. Some of the time requested seems slightly excessive, and the Court believes it is likely that least some of the time the Cohens' attorneys spent opposing the motion overlapped with their post-trial briefing, which happened during the same time period. After careful consideration, the Court awards attorneys' fees of 8 hours for Mr. Valle and 12 hours for Ms. Ksachikyan to prepare the briefing, plus 2 hours for each counsel to prepare for and attend the hearing.

Conclusion

The

Kaplans' Motion for Sanctions is DENIED.

The Cohens

are awarded \$15,300 in attorneys' fees against the Kaplans and the Gilcrest Law Group.